

Calendar Line 1

Case Name: Derek Daniel Bobadilla, on behalf of himself and others similarly situated v.
Loan Factory, a California Corporation, et al.
Case No.: 24CV432129

The above-entitled action comes on for hearing before the Honorable Theodore C. Zayner on June 24, 2026, at 1:30 p.m. in Department 19. The Court now issues its tentative ruling as follows:

I. Introduction

This is a class action for misappropriation of likeness brought by plaintiff Derek Daniel Bobadilla (“Plaintiff”) against defendant Loan Factory, Inc. (“Defendant”). The complaint asserts causes of action for: (1) violation of Civil Code section 3344 (unauthorized commercial use of name, voice, signature, photograph or likeness); (2) common law misappropriation of name and likeness; (3) violation of Business and Professions Code section 17200, et seq. (unfair competition); and (4) unjust enrichment. On October 22, 2024, in docket 24CV450091, Plaintiff filed a separate representative action complaint against defendants asserting a sole cause of action for civil penalties under the private attorneys general act (“PAGA”). The Court granted Plaintiff’s motion for class certification via written order on June 11, 2026.

Now before the Court is Plaintiff’s motion to compel compliance with a deposition subpoena served on non-party Brian Stevens (“Stevens”). Defendant has filed a response to the motion and Plaintiff has filed a reply.¹

II. Legal Standard

“In California, discovery may be obtained from a nonparty through an oral deposition, a written deposition, or a deposition for the production of business records and things. (Code Civ. Proc., § 2020.010, subd. (a).) To pursue the deposition of a nonparty, a party must

¹ The Court declines to consider the declaration and request for judicial notice Plaintiff filed with his reply. (See *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-38 [“The general rule of motion practice . . . is that new evidence is not permitted with reply papers.”]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252 [same]; *San Diego Watercrafts, Inc. v. Wells Fargo Bank, N.A.* (2002) 102 Cal.App.4th 308, 316 [same]; *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 783 [points raised in the first time in reply should not be considered].)